

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.**

3. M-CV-0096651 THE BEST SERVICE v. EATON, CORRINE

Defendant's Motion to Set Aside Entry of Default

Defendant moves the court to set aside the entry of default entered against her on May 6, 2026. (Code Civ. Proc., §§ 473, 473.5.) However, defendant has provided insufficient evidence that the failure to timely respond was due to her mistake, surprise, inadvertence, or excusable neglect. Accordingly, defendant's motion is denied without prejudice.

4. M-CV-0097654 VINEYARD GATE APTS. v. DAVIS, MAHAGANY

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is timely requested, it will be heard on **Wednesday, August 19, 2026, at 1:00 p.m. in Department 4.**

Motion to Set Aside Judgment

On July 15, 2026, the court held a bench trial on plaintiff's unlawful detainer complaint. Plaintiff appeared whereas defendant did not. The court entered judgment in favor of plaintiff and against defendant.

The same day, defendant filed an ex parte application for stay pending hearing on motion to set aside judgment that indicated defendant did not receive the court's notice of trial because it was sent to apartment number #110 but defendant resides at apartment number #1100. The court granted a stay and set a hearing on the motion to set aside judgment for July 30, 2026. The court's order also provided

Defendant shall file and serve a copy of the motion to set aside judgment and this order on plaintiff or, if plaintiff is represented by counsel, then on plaintiff's counsel by no later than July 16, 2026 at 5:00 p.m. Service may be effected by personal service, emailed service, or by facsimile. Proof of service shall be filed with the court no later than July 20, 2026. Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny defendant's motion

(Order on Ex Parte Application for Stay of Execution, p. 2.)

On 30, 2026, the court again continued the motion for defendant to serve plaintiff's counsel of record with the motion to set aside judgment, court's order on ex parte application for stay of execution, and the court's July 30, 2026, tentative ruling.

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A review of the court record reveals no proof of service of defendant's motion or the court's orders has been filed.

Accordingly, defendant's motion is denied.

However, the court, on its own motion, sets aside the judgment entered on July 15, 2026. The complaint lists defendant's address as "1601 Vineyard Road #1100, Roseville, California 95747." Yet, the notice of trial sent by the court to defendant listed defendant's address as "1601 Vineyard Road #110, Roseville, California 95747." Accordingly, defendant did not receive notice of the trial due to the court's error.

A case management conference is set for **September 4, 2026, at 9:00 a.m. in Department 1** for the parties to select a new trial date. Department 1 is located at 101 Maple Street Auburn, CA 95603.

5. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

Petition for Approval of Minor's Compromise Claim (Ryder Gardner)

Petitioner's petition for approval of minor's compromise claim is continued to **August 20, 2026, at 8:30 a.m. in Department 3**. Petitioner requests the court to approve attorney's fees in the amount of 33.33% of minor's gross recovery. Absent extraordinary and compelling circumstances, the court finds that reasonable attorney fees for representation of a minor are no more than one-fourth of minor's gross recovery. Petitioner shall file an amended petition on or before **August 17, 2026**.

6. S-CV-0053141 HOSTLER, GRACE v. TERNAVSKY, ALEX

The motion for attorney withdrawal is dropped from calendar as no moving papers were filed with the court.

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